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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ LPA 469/2016

DINESH KUMAR

..... Appellant

Through: Mr. Kirti Uppal, Sr. Adv. with
Ms. Aastha Dhawan and Ms. Gauri P.
Desai, Advs.

versus

NEW DELHI MUNICIPAL COUNCIL & ORS

..... Respondents

Through: Mr. Harsha Peechara, Addl. Standing
Counsel, NDMC
Mr. Devesh Singh, ASC (Civil) GNCTD
with Ms. Neelam Kholia, Adv. for R-3
(GNCTD) and Police

+ LPA 472/2016

KISHAN LAL

..... Appellant

Through Mr. Kirti Uppal, Sr. Adv. with
Ms. Aastha Dhawan and Ms. Gauri P.
Desai, Advs.

versus

NEW DELHI MUNICIPAL COUNCIL & ORS

..... Respondents

Through: Mr. Harsha Peechara, Addl. Standing
Counsel, NDMC

+ LPA 473/2016

MOHD KHURSID

..... Appellant

Through Mr. Kirti Uppal, Sr. Adv. with
Ms. Aastha Dhawan and Ms. Gauri P.
Desai, Advs.

versus

NEW DELHI MUNICIPAL CORPORATION & ORS

..... Respondents

Through: Mr. Harsha Peechara, Addl. Standing
Counsel, NDMC



+ LPA 474/2016
KULDEEP SINGH Appellant

Through Mr. Kirti Uppal, Sr. Adv. with
Ms. Aastha Dhawan and Ms. Gauri P.
Desai, Advs.

versus

NEW DELHI MUNICIPAL COUNCIL & ORS Respondents

Through: Mr. Harsha Peechara, Addl. Standing
Counsel, NDMC
Mr. Sunil Malhotra and Mr. Rajat
Malhotra, Advs. for R-3 (GNCTD)

+ LPA 477/2016
SANJAY KUMAR GUPTA Appellant

Through Mr. Kirti Uppal, Sr. Adv. with
Ms. Aastha Dhawan and Ms. Gauri P.
Desai, Advs.

versus

NEW DELHI MUNICIPAL CORPORATION & ANR Respondents

Through: Mr. Harsha Peechara, Addl. Standing
Counsel, NDMC
Mr. Devesh Singh, ASC (Civil) GNCTD
with Ms. Neelam Kholia, Adv. for R-3
(GNCTD) and Police

+ LPA 478/2016
GANPAT RAI Appellant

Through Mr. Kirti Uppal, Sr. Adv. with
Ms. Aastha Dhawan and Ms. Gauri P.
Desai, Advs.

versus

NEW DELHI MUNICIPAL COUNCIL & ORS Respondents

Through: Mr. Harsha Peechara, Addl. Standing
Counsel, NDMC
Mr. Sunil Malhotra and Mr. Rajat
Malhotra, Advs. for R-3 (GNCTD)



CORAM:

HON'BLE MR. JUSTICE G.S.SISTANI

HON'BLE MR. JUSTICE VINOD GOEL

ORDER

02.06.2017

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All the appellants had agreed to accept the alternate sites being offered by the NDMC but had raised a grievance that the area is not fit for use. Time was sought by the NDMC to make the area fit for use. On 31.05.2017, this Court had visited the Laxmi Bai Nagar market in the presence of counsels for some of the parties. Area was inspected. Tharas are ready for use. We were also informed at the time of inspection that concrete slabs would be prepared in the open area which would accommodate further street vendors. We are also informed today by learned standing counsel that allotment letters would be issued by 05.06.2017 to 45 street vendors including the petitioners herein. We are also informed that the further development work of making of concrete slabs would be completed within a period of two months and in all about 85 persons would be accommodated.. The learned counsel for NDMC further submits that after the allotment letters are handed over, a date for opening of the market would be fixed. Due publicity would be given. Proper sign boards would be erected and if possible, even a small cultural programme will be held so that general public is attracted to this market and to make the venture successful. We hope that the NDMC would comply with the time line to enable the street vendors to commence their vending activities as soon as possible.

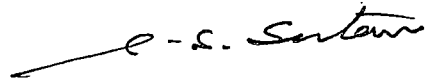
With these observations and with the consent of the parties, the appeals are disposed of.

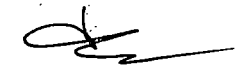
CM No. 30937/2016 in LPA No. 469/2016, CM No. 30944/2016 in LPA No. 472/2016, CM No.30946/2016 in LPA No.473/2016, CM No.30948/2016 in



LPA No. 474/2016, CM No. 31246/2016 in LPA No. 477/2016 & CM
No.31249/2016 in LPA No. 478/2016

Dismissed as infructuous.


G.S.SISTANI, J
(VACATION JUDGE)


VINOD GOEL, J
(VACATION JUDGE)

JUNE 02, 2017/P
LPA 469/2016 etc.

LPA

- Decided on 2.6.17
- Item 26 to 29 connected
+
Item 32 865/17 (for compliance
of order dt 2.6.17